

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

5. SANDRA MCGAGIN V. BRUCE MCGAGIN

25FL0718

On April 14, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and an order to sell the marital residence. She filed her Income and Expense Declaration concurrently therewith. Both documents were served on April 17th; however, the Notice of Tentative Ruling was not served.

On June 23rd, the parties filed a Stipulation and Order Regarding Sale of Marital Residence and Payment of Expenses.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on June 25, 2026.

Petitioner is requesting guideline spousal support in the amount of \$3,026 pursuant to the Xspouse report attached as Exhibit A to her RFO. She further asks that the marital home be listed for sale within 30 days and both parties be ordered to comply with the recommendations of the jointly selected real estate agent regarding all aspects of the sale, including listing the property and evaluating and accepting offers. She asks that all net proceeds from the sale be deposited into her attorney's trust account pending further order of the court or written agreement of the parties.

Respondent asks the court to deviate from guideline based on his hardship. He also asks the court to preclude Petitioner from seeking any reimbursement from Respondent's CalPERS monthly pension during the time he is ordered to pay spousal support based on the CalPERS income and an order reserving claims for reimbursements/credits for Respondent's post-separation payment of expenses on behalf of Petitioner and/or towards joint obligations.

First and foremost, the court finds the June 23rd stipulation of the parties resolves Petitioner's requests regarding the sale of the marital residence and the proceeds thereof. As such, the court declines to rule on those requests as they are now moot.

Regarding the issue of support, generally speaking, a married person has a duty to support his or her spouse. Cal. Fam. Code § 4300. The intent is to ensure that each party, upon separation, is able to maintain the marital standard of living. See Cal. Fam. Code § 4330(a). The court maintains broad discretion in determining whether a support award is warranted and if so, the amount and duration thereof. In re Marriage of McLain, 7 Cal. App. 5th 262, 269 (2017). While the factors listed in Family Code section 4320 may be considered

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by the court, an award for temporary support is generally unrestricted by any statutory authority. See *Marriage of Tong & Samson*, 197 Cal. App. 4th 23, 29 (2011).

Here, in keeping with Respondent's duty to continue his support of Petitioner, the court does not find good cause to deviate from guideline support as he requests. Respondent's argument, simply that his expenses will exceed his income, is not sufficient grounds to deviate from guideline as such, the request is denied. The court is, however, reserving jurisdiction over Respondent's ability to seek reimbursements and/or credits for expenses paid since the date of separation. The court is also reserving jurisdiction on the issue of Petitioner's ability to claim an interest in Respondent's pension.

Utilizing the figures as outlined in the attached Xspouse report, the court finds that spousal support per the Alameda formula is \$2,402 per month. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$2,402 per month as and for temporary spousal support, payable on the 15th of the month until further order of the court or legal termination. This order is effective as of April 15, 2026.

The court finds the above order results in arrears in the amount of \$7,206 through and including June 15, 2026. The court orders Respondent pay Petitioner \$300.25 on the 1st of each month until paid in full (approximately 24 months). If any payment is missed or late the entire amount shall become immediately due and payable with legal interest.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT FINDS THE JUNE 23RD STIPULATION OF THE PARTIES RESOLVES PETITIONER'S REQUESTS REGARDING THE SALE OF THE MARITAL RESIDENCE AND THE PROCEEDS THEREOF. AS SUCH, THE COURT DECLINES TO RULE ON THOSE REQUESTS AS THEY ARE NOW MOOT.

THE COURT DOES NOT FIND GOOD CAUSE TO DEVIATE FROM GUIDELINE SUPPORT AS REQUESTED BY RESPONDENT. THE COURT IS, HOWEVER, RESERVING JURISDICTION OVER RESPONDENT'S ABILITY TO SEEK REIMBURSEMENTS AND/OR CREDITS FOR EXPENSES PAID SINCE THE DATE OF SEPARATION. THE COURT IS ALSO RESERVING JURISDICTION ON THE ISSUE OF PETITIONER'S ABILITY TO CLAIM AN INTEREST IN RESPONDENT'S PENSION.

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UTILIZING THE FIGURES AS OUTLINED IN THE ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$2,402 PER MONTH. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$2,402 PER MONTH AS AND FOR TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 15TH OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF APRIL 15, 2026.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$7,206 THROUGH AND INCLUDING JUNE 15, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$300.25 ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 24 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	12336	12336
Filing status	MFJ->	<-MFJ	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1	Nets(adjusted)	Husband		
Wages+salary	0	0	Husband	9522		
Self-employed income	0	0	Wife	2814		
Other taxable income	11629	3375	Total	12336		
TANF+CS received	0	0	Support			
Other nontaxable income	0	0	Addons	0		
New spouse income	0	0	Guideln CS	0		
401(k) employee contrib	0	0	Alameda SS	2402		
Adjustments to income	0	0	Total	2402		
SS paid prev marriage	0	0	-			
CS paid prev marriage	0	0				
Health insurance	174	0		Wife		
Other medical expense	0	0				
Property tax expense	668	0				
Ded interest expense	0	0	Proposed			
Charitable contributions	0	0	Tactic 9			
Misc tax deductions	0	0	CS	0		
Qual bus income ded	0	0	SS	2402		
Required union dues	0	0	Total	2402		
Mandatory retirement	0	0				
Hardship deduction	0 *	0 *	Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Husband pays Guideline SS, Proposed SS

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8. JONATHAN PEARCE V. ELIZABETH MONROE

24FL0151

On April 13, 2026, Petitioner filed a Request for Order (RFO) seeking property orders regarding the marital residence and sanctions. He filed a Memorandum of Points and Authorities and a Declaration of Attorney Amber White concurrently with the RFO. All required documents were served by mail on April 16, 2026.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Judgment in this matter was entered on June 12, 2026. As part of the Judgment, the court made orders regarding the marital residence located at 10180 Rock Creek Road. The court retained jurisdiction over the home until sold and the proceeds distributed in accordance with the terms of the Judgment.

Petitioner requests the following orders: (1) Respondent to vacate the marital residence within 2 weeks of the hearing; (2) Petitioner to be given permission to dispose of the items remaining after Respondent vacates; (3) Petitioner be given sole control over the sale of the marital residence; (4) The court clerk to be appointed to sign as elisor on behalf of Respondent for all documents related to the sale of the home; (5) Petitioner to be reimbursed for the mortgage payments for each month from November 1, 2025 through the date of the sale; and (6) Sanctions in the amount of \$5,000 pursuant to Family Code § 271.

Petitioner’s requests are granted in part. Respondent is ordered to vacate the residence no later than August 6, 2026. For any personal property of Respondent that is left at the residence, Petitioner is to provide Respondent with written notice of the remaining property and the deadline to pick up the items. Respondent shall have 14 days from the date of the notice to pick up any of her property; if she has not done so by that date then Petitioner may dispose of the property. Petitioner is granted sole control over the sale of the marital residence. Regarding reimbursement for the mortgage payments, Respondent is ordered to reimburse Petitioner for one-half of each of the mortgage payments from November 1, 2025 through the date of the sale of the home.